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Chapter: 01

Politics and Islamic Politics

A. Literal and Terminological Meaning of Politics

Literal Meaning

The word **politics** is derived from the Greek term *politikos*, which means “related to citizens” or “concerning public affairs.” It is closely associated with *polis*, meaning “city” or “city-state.” In general, politics refers to the process of managing public affairs, making decisions, and governing a community or state. In Arabic, the term used for politics is **السياسة (as-siyāsah)**, which means managing, governing, directing, and taking care of affairs. Therefore, politics can broadly be understood as the organized management of the affairs of society and the state for the common good.

Terminological Meaning

In political science, politics refers to the process through which power, authority, and decision-making are organized and exercised within a society or state. It involves the formulation and implementation of policies, the distribution of resources, the resolution of conflicts, and the regulation of relationships among individuals, groups, and institutions. In simple terms, politics

is the process of determining who exercises authority, how decisions are made, and how the affairs of society are governed.

B. Meaning of the Islamic Political System

The Islamic political system refers to the principles, institutions, values, and methods through which the affairs of a Muslim society or state are governed in accordance with the Qur'an, Sunnah, and the broader objectives of Sharī'ah (Maqāṣid al-Sharī'ah). In simple terms, it is a system of governance in which political authority is exercised within the background of Islamic moral and legal principles, with particular emphasis on justice (*'adl*), consultation (*shūrā*), accountability (*amānah*), human dignity, protection of rights, and public welfare (*maṣlahah*).

Key Principles

1. **Divine guidance** — Political governance operates within the ethical and legal agenda of the Qur'an and Sunnah.
2. **Justice (*'adl*)** — Justice is a fundamental objective of governance.
3. **Shūrā (consultation)** — Public affairs should be managed through consultation and collective deliberation.
4. **Amānah (trust and accountability)** — Political authority is regarded as a responsibility rather than merely a privilege.
5. **Human dignity and rights** — The dignity and fundamental rights of individuals should be protected.
6. **Public welfare (*maṣlahah*)** — Governance should seek the common good and prevent harm.
7. **Rule of law** — Rulers and citizens are subject to Islamic legal and ethical principles.
8. **Accountability** — Those entrusted with authority are accountable for how they exercise that authority.

C. Basic Principles of the Islamic Political System

1. Tawhīd and Divine Sovereignty (التوحيد والسيادة الإلهية)

The first and most fundamental principle of the Islamic worldview is Tawhīd, the absolute oneness and sovereignty of Allah (SWT). In Islam, ultimate authority belongs to Allah (SWT), while human beings exercise political authority only as a trust and within the moral and legal limits established by divine guidance. The Qur'an states:

إِنَّ الْحُكْمَ إِلَّا لِلَّهِ أَمَرَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ ۚ ذَلِكَ الدِّينُ الْقَيِّمُ وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ

“Judgment belongs only to Allah (SWT). He has commanded that you worship none but Him. That is the upright religion, but most people do not know.” (Qur'an 12:40). This principle means that political power cannot be considered absolutely unrestricted. A ruler, government, or political institution cannot legitimately transform injustice into justice or prohibit what is intrinsically obligatory merely through the exercise of political power. Human political authority is therefore delegated, limited, and accountable. At the same time, Tawhīd should not be reduced to a purely institutional theory of government. It is primarily a theological principle that establishes Allah's ultimate authority over human life. Its political implication is that rulers must recognize that they are servants and trustees rather than absolute sovereigns.

2. Justice (‘Adl)

Justice is one of the central principles of Islamic governance. The Qur’an repeatedly commands Muslims to establish justice and prohibits oppression, discrimination, and arbitrary judgment. Allah (SWT)says:

إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ وَإِيتَاءِ ذِي الْقُرْبَىٰ وَيَنْهَىٰ عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ وَالْبَغْيِ

“Indeed, Allah’s commands justice, excellence, and giving to relatives, and He forbids immorality, wrongdoing, and oppression.” (Qur’an 16:90). The Qur’an also commands believers to maintain justice even when it conflicts with their personal interests:

يَا أَيُّهَا الَّذِينَ آمَنُوا كُونُوا قَوَّامِينَ بِالْقِسْطِ شُهَدَاءَ لِلَّهِ وَلَوْ عَلَىٰ أَنْفُسِكُمْ أَوِ الْوَالِدِينَ وَالْأَقْرَبِينَ

“O believers! Stand firm for justice as witnesses for Allah (SWT), even if it is against yourselves, your parents, or close relatives.”(Qur’an 4:135). Justice in an Islamic political system therefore requires impartiality in law, administration, economic affairs, judicial decisions, and the treatment of citizens. A ruler cannot legitimately favor the rich, powerful, or politically influential at the expense of the weak. Justice is consequently not merely a personal virtue; it is a fundamental requirement of legitimate governance.

3. Shūrā (Consultation)

Shūrā means consultation, deliberation, and seeking the views of others in matters of collective concern. It is an important principle of Islamic political governance because it discourages arbitrary rule and encourages responsible participation in public affairs. Allah (SWT)describes the believers as:

وَأَمْرُهُمْ شُورَىٰ بَيْنَهُمْ

“Their affairs are conducted by mutual consultation.”. (Qur’an 42:38). These verses establish consultation as an important Islamic principle. The Prophet ﷺ himself consulted his Companions on various social, military, and administrative matters, despite receiving revelation. Shūrā proves that governance should not be based solely on the personal wishes of a ruler. Rather, leaders should seek informed advice, consider different perspectives, and make decisions with the public interest in mind.

4. Amānah (Political Authority as a Trust)

Islam considers political authority an amānah, or trust. Holding public office is therefore a responsibility rather than an opportunity for personal enrichment, privilege, or domination. Allah (SWT) states:

إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ

“Indeed, Allah (SWT)commands you to render trusts to whom they are due and, when you judge between people, to judge with justice.” (Qur’an 4:58). The verse establishes a direct relationship between trust and political/judicial responsibility. Authority must be entrusted to appropriate people and exercised with justice. The Prophet ﷺ further emphasized the seriousness of public responsibility:

كُلُّكُمْ رَاعٍ وَكُلُّكُمْ مَسْئُولٌ عَنْ رَعِيَّتِهِ

“Each of you is a guardian, and each of you is responsible for those under your care.” The Prophet ﷺ specifically included the ruler:

فَالْإِمَامُ رَاعٍ وَهُوَ مَسْئُولٌ عَنْ رَعِيَّتِهِ

“The ruler is a guardian and is responsible for his subjects.” (Ṣaḥīḥ al-Bukhārī, 7138). Thus, political authority in Islam carries a profound ethical and spiritual responsibility.

5. Accountability (*Mas'ūliyyah*) المسئولية والمساءلة

Accountability is closely connected with the concept of *amānah*. A political leader is not free from responsibility merely because he or she possesses authority. Every person entrusted with responsibility is accountable for how that responsibility is exercised. The Qur'an states:

وَقِفُّهُمْ إِنَّهُمْ مَسْئُولُونَ

“And stop them, for they are to be questioned.” (Qur'an 37:24). The Prophetic principle is particularly explicit concerning rulers:

فَالْإِمَامُ رَاعٍ وَهُوَ مَسْئُولٌ عَنْ رَعِيَّتِهِ

“The ruler is a guardian and is responsible for his subjects.” (Ṣaḥīḥ al-Bukhārī, 7138). This establishes an important principle: authority creates responsibility. Accountability has both a spiritual dimension, because rulers will ultimately answer before Allah (SWT), and a social/legal dimension, because governance must be subject to justice, law, and appropriate mechanisms of public accountability.

6. Rule of Law and Obedience to Law سيادة القانون وطاعة ولي الأمر

Islamic governance is not based on the unrestricted personal will of a ruler. The ruler and the governed are both bound by principles of justice and divine guidance. Allah (SWT) says:

إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ

“Indeed, Allah commands you to render the trusts to whom they are due, and when you judge between people, to judge with justice.” (Qur'an 4:58). The holy Qur'an further states:

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ

“O believers! Obey Allah (SWT), obey the Messenger, and those in authority among you. If you differ over anything, refer it to Allah (SWT) and the Messenger.” (Qur'an 4:59). The verse establishes both obedience to legitimate authority and a higher normative reference in cases of dispute. Therefore, political authority in Islam is not absolute or independent of law.

7. Human Dignity (*Karāmah al-Insān*) كرامة الإنسان

Islam recognizes the inherent dignity of human beings. Political governance must therefore respect human dignity and must not reduce people to instruments of political power. Allah (SWT) says:

وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ

“Indeed, we have honored the children of Adam.” (Qur’an 17:70). This principle has important political implications. A government should protect people from humiliation, arbitrary oppression, unlawful violence, and unjust discrimination. Human dignity also provides an important foundation for protecting vulnerable groups, including the poor, orphans, persons with disabilities, women, children, and other marginalized members of society. Thus, the purpose of political authority is not simply to preserve governmental power; it must also preserve the dignity and well-being of human beings.

8. Public Welfare (*Maṣlaḥah*) المصلحة العامة

The concept of *maṣlaḥah* refers to public benefit, welfare, or the achievement of legitimate human interests. Although the technical theory of *maṣlaḥah* was developed extensively by Muslim jurists, its basic orientation is deeply connected with the Qur’anic concern for justice, welfare, and prevention of harm. Allah (SWT) says:

وَلَا تَعْتُوا فِي الْأَرْضِ مُفْسِدِينَ

“And do not spread corruption throughout the land.” (Qur’an 2:60). The Islamic political system should therefore aim to secure the legitimate welfare of society and prevent social, economic, political, and moral harm. This principle became particularly important in the classical theory of Maqāsid al-Sharī‘ah, which emphasizes the protection and promotion of essential human interests, commonly expressed through the preservation of religion, life, intellect, lineage/family, and property. Consequently, public policy in an Islamic basis should consider the actual welfare of society rather than merely formal political interests.

9. Equality (*Musāwāh*) المساواة

Islam recognizes the fundamental equality of human beings in their human status and their accountability before Allah (SWT). Differences of ethnicity, nationality, wealth, and social status do not provide a legitimate basis for unjust discrimination. Allah (SWT) states:

يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاكُمْ مِنْ ذَكَرٍ وَأُنْثَىٰ وَجَعَلْنَاكُمْ شُعُوبًا وَقَبَائِلَ لِتَعَارَفُوا ۚ إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتْقَاكُمْ

“O humanity! Indeed, we created you from a male and a female and made you into peoples and tribes so that you may know one another. Surely the most noble of you in the sight of Allah (SWT) is the most righteous of you.” (Qur’an 49:13). This verse rejects the idea that race, tribe, nationality, or social status constitutes an inherent basis for superiority. In political life, this principle supports equal protection, impartial justice, and opposition to discrimination and social privilege based merely on lineage or status.

10. Protection of Rights حماية الحقوق

An important objective of Islamic governance is the protection of legitimate human rights and interests. These include the protection of life, religion, intellect, family, property, dignity, and security. The Qur'an strongly prohibits unjustified killing:

وَلَا تَقْتُلُوا النَّفْسَ الَّتِي حَرَّمَ اللَّهُ إِلَّا بِالْحَقِّ

“Do not take a life, which Allah (SWT) has made sacred, except with legal right.” (Qur'an 17:33). Islam also protects property:

وَلَا تَأْكُلُوا أَمْوَالَكُمْ بَيْنَكُمْ بِالْبَاطِلِ

“Do not consume one another's wealth unjustly.” (Qur'an 2:188). Therefore, political authority has a responsibility to protect citizens from unlawful killing, theft, exploitation, oppression, and violation of legitimate rights.

11. Freedom and Responsible Choice الحرية والمسؤولية

Islam recognizes human beings as morally responsible agents. The Qur'an establishes the principle that faith cannot be imposed by force:

لَا إِكْرَاهَ فِي الدِّينِ

“There is no compulsion in religion.” (Qur'an 2:256). This principle demonstrates that genuine faith cannot be produced through coercion. Human beings possess moral agency and are accountable for their choices. However, Islamic political thought does not generally define freedom as unlimited individual action. Freedom is understood together with moral responsibility, the rights of others, and the prohibition of harm and injustice. Therefore, Islamic political freedom is best understood as responsible freedom within a moral and legal context.

12. Promotion of Good and Prevention of Wrong الأمر بالمعروف والنهي عن المنكر

Islamic political thought also emphasizes the moral responsibility of society to encourage good and discourage wrongdoing. Allah (SWT) says:

وَلْتَكُنْ مِنْكُمْ أُمَّةٌ يَدْعُونَ إِلَى الْخَيْرِ وَيَأْمُرُونَ بِالْمَعْرُوفِ وَيَنْهَوْنَ عَنِ الْمُنْكَرِ

“Let there be a group among you who call to goodness, encourage what is right, and forbid what is wrong.” (Qur'an 3:104). The Qur'an further describes the Muslim community:

كُنْتُمْ خَيْرَ أُمَّةٍ أُخْرِجَتْ لِلنَّاسِ تَأْمُرُونَ بِالْمَعْرُوفِ وَتَنْهَوْنَ عَنِ الْمُنْكَرِ

“You are the best community ever raised for humanity: you encourage what is right, forbid what is wrong, and believe in Allah (SWT).” (Qur'an 3:110). This principle gives political and social life a moral dimension. Governance should not merely maintain administrative order; it should also seek to prevent injustice, corruption, exploitation, and serious social harm.

13. Peace, Security, and Social Stability السلام والأمن والاستقرار

The preservation of peace and security is an essential responsibility of political authority. A government must protect society from violence, disorder, aggression, and unjustified conflict. Allah (SWT)says:

وَإِنْ جَنَحُوا لِلسَّلَامِ فَاجْنَحْ لَهَا وَتَوَكَّلْ عَلَى اللَّهِ

“If they incline toward peace, then incline toward it and put your trust in Allah(SWT).”. (Qur’an 8:61) Islam therefore does not treat conflict as an end in itself. Where peaceful relations are possible, peace should be pursued. The political authority also has a responsibility to protect the security of society and ensure that individuals can live, worship, work, and conduct their affairs without unjust fear or violence.

D. Differences Between the Islamic Political System and the Conventional Political System

Aspect	Islamic Political System	Conventional Political System
Source of authority	Based ultimately on divine guidance from the Qur’an and Sunnah.	Generally based on human institutions, constitutions, and political agreements.
Sovereignty	Ultimate sovereignty belongs to Allah; human authority is a trust.	Sovereignty generally rests with the people, state, monarch, or constitution.
Source of law	Shari‘ah, supported by juristic interpretation and ijtihād.	Human-made laws, constitutions, legislation, and legal traditions.
Purpose of governance	Establish justice, protect rights, promote welfare, and fulfill moral and religious responsibilities.	Maintain order, protect rights, provide public services, and promote social and national interests.
Politics and morality	Political authority is closely connected with Islamic ethical and moral principles.	The relationship between politics and morality varies according to the political system.
Consultation	Shūrā is an important Islamic principle of governance.	Consultation is generally expressed through elections, representation, legislatures, and other institutions.
Accountability	Rulers are accountable before Allah (SWT) and society.	Leaders are primarily accountable through constitutional, legal, and political institutions.
Political authority	Considered an amānah (trust) and responsibility.	Generally understood as constitutional or institutional authority.

Chapter: 2

Shariah and Constitution

A. Meaning of Shari‘ah (الشريعة)

Literal Meaning

The word Shari‘ah (الشريعة) comes from the Arabic root ش ر ع and literally means a clear path or a straight way. Allah (SWT) says:

ثُمَّ جَعَلْنَاكَ عَلَىٰ شَرِيعَةٍ مِّنَ الْأَمْرِ فَاتَّبِعْهَا

“Then We have put you on a clear way of Our command, so follow it.” (Qur’an 45:18).

Terminological Meaning

In Islamic terminology, Shari‘ah means the guidance and laws given by Allah (SWT) for human life. It teaches Muslims how to live according to Allah’s commands in matters of worship, morality, family, society, business, justice, and governance.

B. Sources of Shari‘ah (مصادر الشريعة الإسلامية)

The sources of Shari‘ah are the foundations and methods through which Islamic rulings and guidance are derived. Muslim jurists generally distinguish between the primary sources and secondary juristic sources. The Qur’an and Sunnah are the fundamental sources, while other methods are used by qualified scholars to address matters not directly specified in the primary texts.

a. Primary Sources

1. The Qur’an — القرآن الكريم

The Qur’an is the first and highest source of Shari‘ah. It is the revealed word of Allah (SWT) and contains principles and rulings concerning faith, worship, morality, family, social relations, justice, transactions, and other aspects of human life. Allah (SWT) says:

إِنَّ هَٰذَا الْقُرْآنَ يَهْدِي لِلَّتِي هِيَ أَقْوَمُ

“Indeed, this Qur’an guides to that which is most upright.” (Qur’an 17:9). Example: The Qur’an directly commands prayer, fasting, zakāh, justice, and the prohibition of theft, murder, and injustice.

2. Sunnah — السنة النبوية

The Sunnah consists of the sayings, actions, approvals, and practices of Prophet Muhammad ﷺ. It explains the Qur’an and provides practical details for implementing its teachings. Allah says:

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا

“Whatever the Messenger gives you, take it; and whatever he forbids you, refrain from it.” (Qur’an 59:7). Example: The Qur’an commands Muslims to establish prayer, while the Sunnah explains how, when, and in what manner the prayers are performed.

b. Major Juristic Sources and Methods/ Secondary Sources

3. Ijmā‘ — الإجماع

Ijmā‘ means the consensus of qualified Muslim jurists on a legal ruling after the death of the Prophet ﷺ. It provides a means of establishing legal certainty on matters where qualified scholars reach consensus. Example: The Companions reached consensus on the compilation and preservation of the Qur’anic text in a standardized written form during the early caliphate.

4. Qiyās — القياس

Qiyās means analogical reasoning. It applies an established ruling from the Qur’an or Sunnah to a new case because both cases share the same effective cause. Example: Wine is prohibited because it causes intoxication. By Qiyās, other intoxicating substances are also prohibited because they share the same effective cause of intoxication.

5. Istiḥsān — الاستحسان

Istiḥsān literally means choosing or considering something preferable. In Islamic jurisprudence, it refers to adopting a stronger or more appropriate legal solution instead of applying a general analogy rigidly, where recognized Sharī‘ah evidence or necessity supports that approach. Example: Salam (السَّلَم)—a contract in which payment is made in advance for specified goods delivered later—is permitted under specific conditions, despite certain general principles concerning the sale of goods not yet possessed.

6. Maṣlaḥah Mursalah — المصلحة المرسلة

Maṣlaḥah Mursalah means considering public welfare or benefit in matters for which there is no specific text approving or rejecting the particular measure, provided that it does not contradict the Qur’an or Sunnah. Example: Establishing traffic regulations, speed limits, and traffic signals to protect life and maintain public order. Simple meaning: Accepting measures that serve genuine public welfare and do not conflict with Sharī‘ah.

7. ‘Urf — العرف

‘Urf means an accepted custom or established practice of a community. It may be considered in Islamic law when it does not contradict the Qur’an, Sunnah, or established legal principles. Allah says:

خُذِ الْعَفْوَ وَأْمُرْ بِالْعُرْفِ

“Adopt forgiveness, enjoin what is right and customary.” Qur’an 7:199. Example: If a particular community has an established and lawful business custom concerning who normally pays a certain transaction-related expense, that custom may help determine the parties’ obligations when the contract itself is silent.

8. Istishāb — الاستصحاب

Istishāb means maintaining an existing legal state until there is reliable evidence that it has changed. A well-known legal maxim expresses this principle:

الْيَقِينُ لَا يَزُولُ بِالشَّكِّ

“Certainty is not removed by doubt.” Example: A person is certain that they have wuḍū’ but later doubts whether they have broken it. Their previous state of purity remains until they have certainty that it was invalidated.

9. Sadd al-Dharā’i’ — سد الذرائع

Sadd al-Dharā’i’ means blocking the means to harm or prohibited actions. It involves restricting an otherwise permissible action when it is likely to lead to a prohibited or harmful outcome. Allah (SWT) says:

وَلَا تَسُبُّوا الَّذِينَ يَدْعُونَ مِنْ دُونِ اللَّهِ فَيَسُبُّوا اللَّهَ عَدْوًا بِغَيْرِ عِلْمٍ

“Do not insult those they invoke besides Allah (SWT) , lest they insult Allah (SWT) in hostility without knowledge.” (Qur’an 6:108). Example: Although insulting false objects of worship might appear permissible in itself, the Qur’an prohibits it because it could lead to the greater harm of insulting Allah (SWT). Preventing a permissible action when it is likely to lead to serious wrongdoing.

Table 1. Sources of Shari’ah (مصادر الشريعة الإسلامية)

No.	Source/Method	Arabic	Basic Meaning	Example
1	Qur’an	القرآن الكريم	Divine revelation	Command to establish prayer
2	Sunnah	السنة	Prophetic guidance	Practical method of prayer
3	Ijmā’	الإجماع	Scholarly consensus	Consensus of early Muslims on major legal matters
4	Qiyās	القياس	Analogical reasoning	Extending prohibition of wine to other intoxicants
5	Istiḥsān	الاستحسان	Juristic preference	Permitting <i>salam</i> under specific conditions
6	Maṣlaḥah Mursalah	المصلحة المرسلة	Public welfare	Traffic regulations
7	‘Urf	العرف	Valid custom	Recognized business customs
8	Istishāb	الاستصحاب	Presumption of continuity	Maintaining wuḍū’ when merely doubtful
9	Sadd al-Dharā’i’	سد الذرائع	Blocking means to harm	Preventing conduct likely to lead to greater wrongdoing

C. Difference Between Sharī‘ah and Man-Made Law

Sharī‘ah and man-made law both regulate human behavior and seek to maintain justice and social order. However, they differ in their source, authority, purpose, and moral foundation.

Aspect	Sharī‘ah	Man-Made Law
Source	Based primarily on the Qur’an and Sunnah.	Made by human beings through legislatures and legal institutions.
Authority	Ultimate authority belongs to Allah (SWT).	Authority comes from the state, constitution, legislature, or people.
Nature	Religious, moral, and legal in nature.	Mainly legal and administrative in nature.
Purpose	To establish justice, protect rights, promote welfare, and guide human life according to Islam.	To regulate society, maintain order, and protect rights according to social needs.
Moral basis	Based on Islamic moral and ethical principles.	Based on the values and principles accepted by a particular society.
Scope	Covers religious, moral, personal, social, economic, and legal matters.	Mainly deals with matters that require regulation by the state.
Change	Its fundamental principles are permanent, while their interpretation and application may change through <i>ijtihād</i> .	Can be changed, amended, or repealed through human legal procedures.
Accountability	A person is accountable before Allah (SWT) as well as before society and the law.	Accountability is mainly before the state and legal institutions.

D. Definition of Constitution and Islamic Constitution

Definition of Constitution

A constitution is the fundamental law of a state. It establishes the structure of government, defines the powers and responsibilities of state institutions, and protects the basic rights and duties of citizens. In simple words, a constitution explains how a state is governed, how political power is organized, and what rights and duties citizens have.

Definition of Islamic Constitution

An Islamic constitution refers to the fundamental principles and legal context governing a Muslim state or society in accordance with the Qur’an, Sunnah, and the principles of Sharī‘ah. It establishes the organization of political authority and the rights and responsibilities of rulers and citizens while emphasizing principles such as justice (‘*adl*), consultation (*shūrā*), trust (*amānah*), accountability, equality, human dignity, and public welfare (*maṣlahah*).

E. Main Features of an Islamic Structure

An Islamic constitution is a fundamental agenda of governance derived from the Qur'an, Sunnah, and principles of Sharī'ah. It regulates the exercise of political authority and establishes the rights and responsibilities of rulers and citizens. Unlike a purely secular constitutional background, it combines legal, ethical, and spiritual principles and seeks to ensure justice, human dignity, public welfare, and responsible governance. The following are the ten principal features of an Islamic constitution:

1. Divine Foundation and Authority — المرجعية الإلهية

The most distinctive feature of an Islamic constitutional system is its foundation in divine revelation. The Qur'an and Sunnah provide the primary sources and fundamental principles for governance. Political authority is therefore not regarded as completely unrestricted. Allah (SWT) says:

إِن الْحُكْمُ إِلَّا لِلَّهِ

“Judgment belongs only to Allah.” (Qur'an 12:40). This principle means that rulers and institutions must exercise authority within the limits established by Sharī'ah. At the same time, administrative matters not specifically determined by revelation may be developed through ijtihād, shūrā, and consideration of public welfare.

2. Justice as the Foundation of Governance — العدل

Justice (‘*adl*) is a fundamental objective of Islamic governance. An Islamic constitution seeks to prevent oppression, protect rights, and ensure fair treatment for all members of society. Allah (SWT) states:

إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ

“Indeed, Allah (SWT) commands justice and excellence.” (Qur'an 16:90). Justice therefore applies not only to ordinary citizens but also to rulers and public officials. Government authority must be exercised impartially and for the protection of society.

3. Shūrā (Consultation) — الشورى

Shūrā means consultation in matters of public concern. It is an important principle of Islamic political thought and encourages collective participation in decision-making. Allah (SWT) says:

وَأْمُرْهُمْ شُورَىٰ بَيْنَهُمْ

“Their affairs are conducted by mutual consultation.” (Qur'an 42:38). The Prophet ﷺ also practiced consultation with his Companions. In a constitutional context, shūrā promotes participation, deliberation, collective responsibility, and resistance to arbitrary rule.

4. Supremacy of Shari‘ah and Rule of Law — سيادة الشريعة وحكم القانون

An Islamic constitutional system recognizes that rulers themselves are subject to law. Political authority cannot legitimately be exercised according to personal desires or arbitrary decisions. Allah (SWT) says:

وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ

“When you judge between people, judge with justice.” (Qur’an 4:58). Thus, the ruler and the governed are both subject to the principles of justice and Shari‘ah. This provides a basis for limiting arbitrary political power.

5. Political Authority as Amānah (Trust) — الأمانة

In Islam, political authority is regarded as an amānah, or trust, rather than a personal privilege. Public office carries a responsibility to serve society and protect its interests. Allah (SWT) says:

إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا

“Indeed, Allah (SWT) commands you to render trusts to whom they are due.” (Qur’an 4:58). The Prophet ﷺ said:

فَالْإِمَامُ رَاعٍ وَهُوَ مَسْئُولٌ عَنْ رَعِيَّتِهِ

“The ruler is a guardian and is responsible for his subjects.” (Ṣaḥīḥ al-Bukhārī, 7138). Therefore, public officials are expected to demonstrate integrity, honesty, competence, and commitment to public service.

6. Accountability of Rulers — المساءلة والمحاسبة

An Islamic constitution emphasizes the accountability of political leaders. A ruler is accountable to the people for the proper administration of public affairs and, ultimately, to Allah (SWT) for the exercise of authority. The Prophet ﷺ said:

كُلُّكُمْ رَاعٍ وَكُلُّكُمْ مَسْئُولٌ عَنْ رَعِيَّتِهِ

“Each of you is a guardian, and each of you is responsible for those under his care.” (Ṣaḥīḥ al-Bukhārī, 7138). This principle supports transparency, responsible administration, prevention of corruption, and institutional oversight.

7. Protection of Human Dignity and Rights — كرامة الإنسان وحماية الحقوق

Islam recognizes the inherent dignity of human beings. Allah (SWT) says:

وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ

“Indeed, we have honored the children of Adam.” (Qur’an 17:70). An Islamic constitutional outline therefore seeks to protect fundamental human interests, including life, property, family,

dignity, security, and access to justice. This principle places an obligation upon government to protect people from oppression, exploitation, and unjust treatment.

8. Equality and Justice among Citizens — المساواة والعدالة

Islam emphasizes the equal human dignity of people and rejects injustice based on race, tribe, wealth, or social status. Allah (SWT) states:

إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتْقَاكُمْ

“Indeed, the most noble of you in the sight of Allah (SWT) is the most righteous of you.” (Qur’an 49:13). In constitutional terms, this principle supports equality before the law, impartial justice, and protection from discrimination and oppression.

9. Promotion of Public Welfare — تحقيق المصلحة العامة

An Islamic constitution is not concerned solely with the organization of political authority. It also aims to promote the welfare and well-being of society. This is closely related to the Maqāṣid al-Sharī‘ah (مقاصد الشريعة), commonly associated with the protection of:

- Religion — الدين
- Life — النفس
- Intellect — العقل
- Family/lineage — النسل
- Property — المال

Consequently, government has a responsibility to promote education, healthcare, security, economic justice, social welfare, and the protection of vulnerable members of society.

10. Competence, Merit, and Integrity in Leadership — الكفاءة والأهلية والأمانة

Islam emphasizes that public responsibilities should be entrusted to people who possess competence and integrity. Allah (SWT) says:

إِنَّ خَيْرَ مَنْ اسْتَأْجَرْتَ الْقَوِيُّ الْأَمِينُ

“Indeed, the best one you can hire is the strong and trustworthy.” (Qur’an 28:26). The two important qualities highlighted here are:

- القوة — Strength/competence
- الأمانة — Trustworthiness

Thus, leadership should not be based merely on wealth, family background, personal connections, or political favoritism. Ability, integrity, and suitability for public responsibility should be important considerations.

Chapter: 3 **State and Government**

A. Definition of State

A State is a politically organized community of people living permanently within a defined territory, governed by an organized government, and possessing sovereignty. In political science, J. W. Garner defines the state as “a community of persons permanently occupying a definite portion of territory, independent of external control, and possessing an organized government.” Thus, a state is a political organization that exercises supreme authority over its people and territory and maintains independence from external powers.

B. Elements of the State

There are **four essential elements of a State**:

1. Population

Population means the people who permanently live within the territory of a state. A state cannot exist without people. The population may differ in terms of language, religion, culture, ethnicity, and social background.

Example: The citizens and permanent residents of Bangladesh constitute its population.

2. Defined Territory

A defined territory is the geographical area over which a state exercises its authority. It includes land, internal waters, territorial sea, and airspace within the limits recognized by international law. A state must have identifiable territorial boundaries, although minor boundary disputes do not necessarily prevent statehood.

3. Government

Government is the organized political authority through which the state makes and enforces laws, maintains public order, administers justice, and provides public services.

Government generally consists of three principal organs:

- **Legislature** — makes laws.
- **Executive** — implements and administers laws.
- **Judiciary** — interprets laws and administers justice.

4. Sovereignty

Sovereignty means the supreme and independent authority of the state. It has two dimensions:

- **Internal sovereignty:** The state possesses supreme authority over persons and institutions within its territory.
- **External sovereignty:** The state is independent from the control or authority of other states.

C. The major characteristics of modern national states

1. Sovereignty

Sovereignty is the most fundamental characteristic of a modern state. It refers to the supreme and independent authority of the state to govern itself without being subject to the authority of another state. Sovereignty enables a state to make laws, establish institutions, regulate its internal affairs, and conduct its foreign relations. Sovereignty has two principal dimensions:

- **Internal sovereignty:** The state possesses supreme authority over individuals, organizations, and institutions within its territory.
- **External sovereignty:** The state is politically independent from other states and has the right to conduct its foreign affairs without external domination.

For example, a sovereign state has the authority to formulate its own constitution, establish its legal system, and determine its domestic and foreign policies.

2. Defined Territory

A modern national state must possess a definite geographical territory within which its governmental authority operates. Territory includes the state's land area as well as, subject to international law, its internal waters, territorial sea, and airspace. Clearly defined territory is important because it establishes the geographical limits of state authority. The state has jurisdiction over people, property, and activities within those boundaries. Although some states may have minor or disputed borders, a state must generally have an identifiable territorial base. Territory therefore provides the physical foundation of political authority and administration.

3. Permanent Population

A state cannot exist without a permanent population. Population refers to the people who permanently reside within the territory of the state and form its human community. The size of the population is not decisive for statehood. States may have very large populations, while others may have relatively small populations. More importantly, the population must have a sufficiently permanent relationship with the territory. The population is also the foundation of citizenship, political participation, economic activity, and social development. Citizens contribute to the state through taxation, public service, political participation, and compliance with laws.

4. Organized Government

Government is the institutional mechanism through which the authority of the state is exercised. A modern state requires an organized and functioning government capable of making decisions, enforcing laws, maintaining public order, protecting rights, and providing essential public services. Modern governments generally consist of three major organs:

1. **Legislature** — formulates and enacts laws.
2. **Executive** — implements laws and manages public administration.
3. **Judiciary** — interprets laws and administers justice.

The government therefore transforms the general authority of the state into practical political and administrative action. Without an effective government, the state may be unable to maintain order or exercise its sovereignty effectively.

5. National Identity

A major feature of the modern national state is the existence of a sense of national identity among its people. National identity refers to the feeling of belonging to a particular political community or nation. National identity may develop through common history, language, culture, traditions, historical experiences, national symbols, political institutions, and shared values. National flags, anthems, historical commemorations, and national holidays can strengthen this sense of collective belonging. However, a national state does not necessarily require complete cultural or ethnic uniformity. Modern states are often multicultural, multilingual, and religiously diverse. What is important is the development of a shared civic or national consciousness.

6. Citizenship

Citizenship establishes a formal legal and political relationship between an individual and the state. A citizen enjoys certain rights and is subject to corresponding duties and responsibilities. Citizenship commonly provides rights such as:

- Political participation and voting;
- Protection under the law;
- Access to public institutions and services;
- Freedom and other fundamental rights;
- The right to participate in public affairs.

Citizens also have responsibilities, including obeying the law, paying taxes where required, respecting the rights of others, and contributing to the welfare and security of the state. Thus, citizenship connects individuals to the modern state through a system of legal rights and obligations.

7. Rule of Law

The rule of law means that the state and its citizens are governed according to established laws and that no person or authority is above the law. Governmental power must therefore be exercised within a recognized legal context. The rule of law generally involves:

- Equality before the law;
- Protection of fundamental rights;
- Independent and impartial courts;
- Due process of law;
- Accountability of public authorities;
- Protection against arbitrary exercise of power.

The principle is essential for preventing the abuse of governmental authority and ensuring justice and legal certainty. In a modern state, public officials are expected to exercise power according to law rather than personal will.

8. Constitutional Government

Another important characteristic of the modern national state is constitutional government. A constitution establishes the basic context of the political system and determines how governmental power is organized and exercised. A constitution may be written or unwritten, depending on the political system. It generally defines:

- The structure and powers of government;
- The relationship among state institutions;
- The rights and freedoms of citizens;
- The limits of governmental authority;
- Procedures for exercising political power.

Constitutional government is particularly important because it places legal limits on state power and provides a agenda for stable governance.

9. Monopoly over Legitimate Force

A modern state possesses the recognized authority to use or authorize legitimate coercive force for maintaining law and public order. This authority is normally exercised through institutions such as the police, courts, prisons, and armed forces. The purpose of this authority is not simply to use force but to prevent violence, protect citizens, defend the territory, and enforce the law. In a constitutional state, the use of force is expected to remain subject to law and institutional oversight. This characteristic distinguishes the state from private individuals or organizations, which generally cannot exercise coercive power on behalf of the political community without legal authorization.

10. International Recognition and Participation

A modern national state functions within the international system of states. It normally seeks recognition of its sovereignty and territorial integrity from other states and participates in international relations. International participation may include:

- Establishing diplomatic relations;
- Entering into international treaties;
- Joining international organizations;
- Engaging in international trade;
- Cooperating on security and environmental issues;
- Representing national interests in international forums.

International recognition strengthens a state's ability to exercise its sovereignty externally and participate in the global political and legal order.

D. Meaning of Islamic State

1. Linguistic Meaning

The term Islamic State consists of two concepts: *Islamic* and *State*.

- Islamic refers to matters derived from or consistent with the principles and values of Islam.

- State refers to an organized political community consisting of a population, defined territory, government, and sovereignty.

Therefore, an Islamic State may broadly be understood as a state whose political and administrative institutions operate within the normative background of Islam.

2. Terminological Meaning

In political thought, an Islamic State can be understood as a sovereign political authority that organizes public affairs according to the principles of the Qur'an and Sunnah and the broader objectives of Islamic law (Maqāṣid al-Sharī'ah).

E. Basic Principles of an Islamic State

1. Sovereignty of Allah (SWT)

The fundamental principle of an Islamic political order is that ultimate sovereignty belongs to Allah (SWT). Human beings exercise political authority as a trust and are not considered absolutely sovereign in the sense of having unrestricted authority to determine right and wrong independently of divine guidance. The Qur'an states:

إِن الْحُكْمُ إِلَّا لِلَّهِ

“Judgment belongs only to Allah (SWT).” (Qur'an, 12:40). This principle establishes the theological foundation of Islamic governance. Rulers and institutions must exercise authority within the limits established by the Qur'an and Sunnah.

2. Justice (‘Adālah)

Justice is one of the central objectives of Islamic governance. An Islamic State must ensure justice among all members of society and prevent oppression, discrimination, exploitation, and arbitrary exercise of power. The Qur'an commands:

إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ

“Indeed, Allah commands justice and excellence.”
(Qur'an, 16:90)

Justice must be maintained in judicial decisions, administration, economic affairs, political relationships, and the protection of individual rights.

3. Consultation (Shūrā)

Shūrā means consultation and collective deliberation in matters of public concern. Islamic governance encourages rulers to consult qualified people and members of society rather than exercising political authority solely according to personal opinion. The Qur'an praises believers as those:

وَأَمْرُهُمْ شُورَى بَيْنَهُمْ
“whose affairs are conducted by mutual consultation.”
(Qur’an, 42:38)

Shūrā promotes participation, accountability, collective wisdom, and responsible decision-making.

4. Rule of Law and Supremacy of Sharī‘ah

An Islamic State is governed according to the principles of Sharī‘ah. Neither rulers nor ordinary citizens are above the law. Political authority must operate within the limits established by Islamic legal and ethical principles. The Qur’an commands believers to judge with justice:

وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ

“Whenever you judge between people, judge with justice.” Qur’an, 4:58). This principle prevents arbitrary government and establishes legal accountability.

5. Trust and Accountability (*Amānah*)

Political authority in Islam is regarded as an amānah (trust) rather than a personal privilege. Leaders are responsible for fulfilling their duties honestly and are accountable for how they exercise power. The Qur’an states:

إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا

“Indeed, Allah (SWT) commands you to render trusts to whom they are due.” (Qur’an, 4:58). Therefore, corruption, misuse of public resources, abuse of authority, and betrayal of public trust are contrary to the principles of Islamic governance.

6. Equality and Human Dignity

Islam recognizes the fundamental dignity and moral worth of human beings. The state should provide equal protection under law and should not discriminate unjustly on the basis of race, ethnicity, wealth, social status, or tribal origin. The Qur’an declares:

وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ

“Indeed, we have honored the children of Adam.” (Qur’an, 17:70). The Qur’an further emphasizes that human diversity should not become a basis for superiority or oppression. True superiority is associated with piety and righteousness.

7. Protection of Fundamental Rights

An Islamic State is responsible for protecting the essential rights and interests of its people. Islamic jurisprudence places particular emphasis on safeguarding the essential necessities of human life,

commonly expressed through the Maqāṣid al-Sharī‘ah. These traditionally include the protection of:

- **Religion** (*ḥifẓ al-dīn*);
- **Life** (*ḥifẓ al-naḥs*);
- **Intellect** (*ḥifẓ al-‘aql*);
- **Family/lineage** (*ḥifẓ al-nasl*);
- **Property** (*ḥifẓ al-māl*).

8. Public Welfare (*Maṣlaḥah*)

The state must work for the welfare and well-being of society. Governance in Islam is not merely concerned with maintaining political authority; it also seeks to establish conditions that enable people to live secure, dignified, and productive lives.

Public welfare may include:

- Poverty reduction;
- Protection of vulnerable people;
- Provision of education;
- Healthcare and public services;
- Economic justice;
- Public security;
- Social solidarity.

9. Freedom and Responsibility

Islam recognizes various forms of legitimate human freedom, including freedom of thought, expression, property, movement, and participation in public affairs, while placing such freedoms within a basis of moral and legal responsibility. Freedom in an Islamic political system is therefore not understood as absolute license to harm others or violate public rights. Individual liberty must be balanced with social responsibility, justice, morality, and the rights of others.

This principle seeks to establish a balance between individual freedom and collective welfare.

10. Social Justice and Economic Fairness

An Islamic State is expected to establish social and economic justice and prevent extreme exploitation and concentration of wealth. Islam recognizes private property but also imposes ethical and legal responsibilities concerning wealth. The Qur’an states:

كَيْ لَا يَكُونَ دُولَةً بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ

“So that it may not merely circulate among the rich among you.” (Qur’an, 59:7). Instruments such as Zakāh, Ṣadaqah, Waqf, inheritance rules, prohibition of ribā, and regulations against fraud and exploitation contribute to the Islamic vision of economic justice. The state therefore has an

important responsibility to reduce poverty, protect vulnerable groups, and promote equitable economic opportunities.

F. Differences Between Islamic and Secular State

Basis of Comparison	Islamic State	Secular State
1. Foundation	Based on the principles and values of Islam, particularly the Qur'an and Sunnah.	Based primarily on human-made constitutional, legal, and political principles.
2. Ultimate Authority	Ultimate authority belongs to Allah, while human beings exercise authority as a trust within the outline of Shari'ah.	Political authority is generally derived from the people, the constitution, or other human political institutions.
3. Source of Law	The Qur'an and Sunnah are foundational sources, supplemented by Islamic jurisprudence and legitimate methods of legal reasoning.	Laws are primarily formulated through constitutions, legislatures, judicial decisions, and other human legal processes.
4. Role of Religion	Religion has an integral role in public and political life. Islamic ethical and legal principles influence governance.	Religion is generally separated from the formal exercise of state power, although the degree of separation varies among secular states.
5. Purpose of Government	To establish justice, public welfare, moral responsibility, human dignity, and social order in accordance with Islamic principles.	To maintain political stability, individual rights, public order, equality, and social welfare according to the state's constitutional basis.
6. Concept of Sovereignty	Divine sovereignty is foundational; rulers and institutions are trustees responsible for exercising authority justly.	Popular or constitutional sovereignty is generally emphasized, with political authority ultimately resting on the constitutional order and/or the people.
7. Political Leadership	Leadership is regarded as an amānah (trust) and must be exercised according to justice, consultation, accountability, and Islamic principles.	Political leadership is generally determined through constitutional and democratic procedures, such as elections or established succession mechanisms.
8. Shūrā and Political Participation	Shūrā (consultation) is an important principle of Islamic governance, encouraging collective deliberation in public affairs.	Political participation is generally organized through elections, representative institutions, political parties, referendums, and other democratic mechanisms.

Basis of Comparison	Islamic State	Secular State
9. Moral and Ethical Context	Public policy and governance are expected to reflect Islamic moral and ethical values.	Public morality is generally derived from constitutional principles, legislation, civic values, and changing social norms, rather than a single religious outline.
10. Individual Rights and Duties	Rights are recognized within the context of Shari‘ah, human dignity, justice, and social responsibility.	Rights are generally defined and protected through constitutions, legislation, and international human-rights principles.
11. Economic System	Permits private property and commerce while emphasizing Zakāh, charity, inheritance, prohibition of ribā, prevention of exploitation, and economic justice.	Generally, permits market-based or mixed economic systems, regulated through secular economic laws and public policy.
12. Accountability	Rulers are accountable before Allah as well as before the people and relevant legal institutions.	Public officials are accountable primarily through constitutional, legal, judicial, electoral, and institutional mechanisms.
13. Social Welfare	Social welfare is considered both a religious and political responsibility, with emphasis on Zakāh, Ṣadaqah, Waqf, and protection of vulnerable groups.	Social welfare is generally pursued through taxation, social-security systems, public services, and welfare policies.
14. International Relations	International relations are guided by Islamic principles such as justice, fulfillment of agreements, peaceful relations, and protection against aggression.	International relations are generally guided by international law, national interests, treaties, diplomacy, and international institutions.
15. View of Human Life	Human beings are regarded as vicegerents (<i>khulafā’</i>) of Allah, possessing dignity and responsibility before Him.	Human beings are generally viewed primarily as citizens possessing legal rights and responsibilities, with the state not necessarily grounding these in religious doctrine.

G. Meaning, Objective, Types of Government

Meaning of Government

Government is the organized authority through which a state makes and enforces laws, maintains order, administers justice, and manages public affairs. It consists mainly of the legislature, executive, and judiciary.

Objectives of Government

The main objectives of government are:

1. Maintain law and order and ensure peace.
2. Protect life, liberty, and property of citizens.
3. Administer justice and uphold the rule of law.
4. Protect fundamental rights and freedoms.
5. Promote social and economic welfare.
6. Provide public services such as education and healthcare.
7. Ensure national security and defence.
8. Promote national unity and development.

3. Types of Government

The major types include:

1. **Democracy** — government by the people, directly or through representatives.
2. **Monarchy** — government headed by a king or queen.
3. **Oligarchy** — government controlled by a small group.
4. **Dictatorship** — power concentrated in one ruler or a small group.
5. **Theocracy** — government closely connected with religious authority.
6. **Parliamentary Government** — executive is responsible to the parliament.
7. **Presidential Government** — president is elected separately from the legislature.
8. **Federal Government** — power is constitutionally divided between central and regional governments.
9. **Unitary Government** — major political authority is concentrated in the central government.

H. Relation between State and Government

The State and Government are closely related but not identical. The state is the permanent political organization, while government is the machinery through which the authority of the state is exercised.

1. **Government is an essential part of the State**
The state consists of population, territory, government, and sovereignty. Government is therefore one of the essential elements of the state.
2. **Government exercises state authority**
The state possesses sovereignty, but the government exercises that sovereignty by making laws, enforcing them, and administering public affairs.
3. **The State is permanent; Government is temporary**
The state generally continues to exist even when a government change. Governments may change through elections, political transitions, or other constitutional processes.
4. **The State is broader than Government**
The state includes the entire political community, territory, population, institutions, and sovereignty, whereas government refers mainly to the institutions and persons responsible for governing.
5. **Government represents the State**
Government acts on behalf of the state in both domestic and international affairs.

6. Both are mutually dependent

A state needs an organized government to exercise its authority effectively, while a government requires a state within which it can exercise political power.

I. Organs of a Government

The organs of government are the main institutions through which the powers and functions of the state are exercised. In a modern state, government generally has three principal organs:

1. Legislature

The legislature is the law-making organ of government. It discusses public issues, makes and amends laws, approves the national budget, and exercises oversight over the executive. Example: Parliament.

2. Executive

The executive is responsible for implementing and enforcing laws and managing the day-to-day administration of the state. It includes the head of state, head of government, ministers, and administrative officials. Example: President/Prime Minister and Cabinet.

3. Judiciary

The judiciary is responsible for interpreting laws and administering justice. It resolves disputes, protects legal rights, and determines whether laws and government actions comply with the constitution and applicable law. Example: Courts and judges.

In Short

Legislature → Makes laws

Executive → Implements laws

Judiciary → Interprets laws and administers justice

Chapter: 4

Citizen and Citizenship

A. Meaning and Types of Citizenship

1. Meaning of Citizenship

Citizenship is the legal and political relationship between an individual and a state. It gives a person certain rights, protections, duties, and responsibilities as a member of that state. In simple terms, citizenship means legal membership of a state. A citizen generally enjoys rights such as the right to vote, participate in public affairs, receive state protection, and enjoy other constitutional

rights. At the same time, citizens have duties such as obeying the law, paying taxes, respecting the rights of others, and contributing to the welfare of the state.

B. Types of Citizenship

The major types of citizenship include:

1. **Citizenship by Birth**
A person acquires citizenship because they are born in a particular country or to parents who are citizens of that country.
2. **Citizenship by Origin**
A person acquires citizenship through their parents or families, even if they are born outside the country.
3. **Citizenship by Naturalization**
A foreign national may acquire citizenship after fulfilling certain legal requirements, such as residence, good conduct, and knowledge of the country's language or laws.
4. **Citizenship by Registration**
Some states provide citizenship through a formal registration process for persons who satisfy specific legal conditions.
5. **Citizenship by Marriage**
In some countries, a foreign spouse may become eligible for citizenship through marriage to a citizen, subject to legal requirements.
6. **Dual Citizenship**
A person may legally hold citizenship of two countries simultaneously, where the laws of those countries permit it.
7. **Multiple Citizenship**
In certain circumstances, a person may hold citizenship in more than two countries, depending on the laws of the countries concerned.

C. Types of Citizenship under an Islamic Constitution

Under an Islamic constitutional outline, citizenship refers to the legal and political membership of a person in the Islamic polity, together with the rights, duties, and protections associated with that membership. Classical Islamic political thought used categories that do not exactly correspond to modern citizenship, so they should be understood in their historical and constitutional context.

1. Muslim Citizens

Muslim citizens are members of the Islamic polity who profess Islam. They enjoy the full range of civic and political rights recognized by the constitutional and legal system and are subject to its corresponding duties. They may participate in public affairs through mechanisms such as *shūrā*, subject to the applicable constitutional background.

2. Non-Muslim Citizens (*Ahl al-Dhimmah*)

Historically, non-Muslim communities permanently living under Muslim political authority were often described as *Ahl al-Dhimmah* (*dhimmis*). They were entitled to protection of life, property, religious practice, and personal security in return for fulfilling the legal obligations applicable to their status. However, *dhimmah* is a classical historical category, not necessarily identical to

modern constitutional citizenship. Contemporary Muslim-majority states may instead recognize equal citizenship regardless of religion.

3. Protected Foreigners (*Musta'minūn*)

A *musta'min* was a non-Muslim foreigner who entered Muslim territory under a guarantee of security (*amān*). Such a person was entitled to protection for the period covered by that guarantee but did not necessarily possess the permanent political status of a citizen.

D. Rights & Duties of Citizens

In an Islamic constitutional basis, citizenship involves both rights and responsibilities. The state is responsible for protecting the legitimate rights and welfare of its citizens, while citizens are expected to fulfill their duties toward Allah, society, and the state.

a. Rights of Citizens

1. Right to Life and Security

Every citizen has the right to protection of life, physical security, and personal safety. Unlawful killing, violence, and oppression are prohibited.

2. Right to Justice

Citizens have the right to equal and fair treatment before the law. Justice must be administered without arbitrary discrimination or oppression.

3. Right to Human Dignity

Islam recognizes the dignity and honor of every human being. The Qur'an states:

وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ
“Indeed, We have honored the children of Adam.”
(Qur'an, 17:70)

4. Freedom of Religion

Non-Muslim citizens are entitled to protection of their religious beliefs and legitimate religious practices, subject to the constitutional and legal context.

5. Right to Property

Citizens have the right to own, possess, use, and transfer property lawfully. Unlawful seizure, theft, and exploitation of property are prohibited.

6. Right to Education

Citizens have the right to seek beneficial knowledge and education. Education is considered an important means of individual and social development.

7. Right to Political Participation

Citizens may participate in public affairs through consultation (*shūrā*), representation, advice, and other legitimate constitutional mechanisms.

8. Right to Social Welfare

The state has a responsibility to protect citizens from poverty, hunger, injustice, and social vulnerability and to promote public welfare.

b. Duties of Citizens

1. Obedience to Law

Citizens are required to obey lawful authority and the laws of the state, provided that such laws do not require disobedience to Allah (SWT).

2. Loyalty to the State

Citizens should maintain loyalty, social responsibility, and commitment to the security and welfare of the political community.

3. Payment of Obligatory Contributions

Citizens must fulfill legally and religiously required financial obligations, including Zakāh for those upon whom it is obligatory, as well as lawful taxes imposed for public needs.

4. Protection of Public Order

Citizens have a duty to respect the rights of others, avoid violence and disorder, and contribute to peace and social harmony.

5. Defence of the State

Citizens have a responsibility to contribute to the defence and security of the state when required according to legitimate law.

6. Promotion of Good and Prevention of Wrong

Citizens should encourage justice, honesty, righteousness, and social responsibility and oppose injustice and harmful conduct through lawful and appropriate means.

7. Respect for Others' Rights

Every citizen has a moral and legal responsibility to respect the life, property, dignity, religion, and legitimate rights of others. In an Islamic background, the protection of these rights is an essential principle of social justice and peaceful coexistence. Citizens should avoid harming others, violating their property, insulting their dignity, or interfering unjustly in their religious and personal affairs. Respecting the rights of others also requires fairness, tolerance, mutual respect, and adherence to the principles of justice. Such conduct strengthens social harmony, protects human dignity, and promotes a stable and just society.

8. Contribution to Public Welfare

Citizens have a responsibility to contribute to the welfare and development of society according to their abilities and circumstances. This contribution may include charity (*ṣadaqah*), cooperation in beneficial activities, public service, helping vulnerable members of society, protecting public property, and participating responsibly in community affairs. Islam encourages cooperation in matters of righteousness and social benefit, as stated in the Qur'an:

وَتَعَاوَنُوا عَلَى الْبِرِّ وَالتَّقْوَىٰ وَلَا تَعَاوَنُوا عَلَى الْإِثْمِ وَالْعُدْوَانِ

“And cooperate in righteousness and piety, and do not cooperate in sin and transgression” (Qur'an, 5:2). Therefore, responsible citizenship involves not only claiming rights but also fulfilling duties that promote social welfare, solidarity, justice, and the common good.

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